# The Reasonable Person Test

English tort law | Study guide | An objective test and child defendants

## 1. The general question

To decide **breach of duty**, the court asks whether the defendant acted with the care reasonably required in the circumstances. The **reasonable person** is a legal benchmark for that assessment, not a named individual or a perfectly cautious person.

The test is **objective**: the defendant's personal belief that the conduct was safe does not settle the issue. But objective does not mean ignoring the facts. The activity, the foreseeable danger and the situation in which the defendant acted all matter.

## 2. What changes where the defendant is a child?

In the ordinary child-defendant setting, the comparison is with a reasonable child of the defendant's age in the circumstances. For a 13-year-old, ask what reasonable care could be expected from a child of 13, rather than simply imposing adult judgment.

This recognises that foresight and judgment develop with age. It does not mean asking only whether this particular child personally appreciated the danger. The court still uses an objective, age-appropriate benchmark.

## 3. An adjusted standard is not immunity

A child may fall below that standard and be liable in negligence if the remaining requirements are established. Being under 18 does not automatically defeat a claim. Nor does the adult standard mean that every child would always be negligent: the conduct and the risk still require analysis.

> Objective test: compare the conduct with an appropriate legal benchmark. Child defendant: ordinarily use the reasonable child of the same age. The circumstances remain essential in both inquiries.

Scope: breach in English negligence law. This guide focuses on the childhood adjustment discussed in the transcript, not every special standard or the rules on criminal responsibility.

# Mullin v Richards

## 1. Facts: a mock sword fight

In **Mullin v Richards [1998] 1 WLR 1304**, two 15-year-old schoolfriends, Teresa Mullin and Heidi Richards, were play-fencing with plastic rulers. One ruler broke and a fragment entered Teresa's right eye, causing loss of useful sight in that eye.

The trial judge found Heidi negligent, with a 50% reduction for Teresa's contributory negligence. Heidi appealed. The claim against the local education authority had been dismissed, and that dismissal was not challenged in this appeal.

## 2. The correct comparison

The Court of Appeal asked what an ordinarily prudent and reasonable 15-year-old schoolgirl in Heidi's situation would have appreciated. It did not simply substitute the foresight of an adult, and did not make Heidi's own subjective belief decisive.

Ruler fencing was common at the school. The evidence did not establish previous injuries, warnings or a prohibition known to the girls. There was also no evidential basis for inferring excessive force merely because a ruler had broken.

## 3. Who won, and why?

**Heidi Richards won her appeal.** Judgment was entered in her favour. On the facts and evidence, there was no sufficient basis for attributing to a reasonable child of that age foresight of a significant risk of injury from this game.

The result was not "children never owe duties" or "the claimant was injured, so somebody must pay". The case illustrates an age-adjusted objective assessment of the risk before the event.

> Do not infer negligence backwards from the injury. A ruler breaking does not, by itself, prove dangerous force or establish what a reasonable 15-year-old should have foreseen.

Judgment: 6 November 1997; report: [1998] 1 WLR 1304. The transcript's assertion that breakage and injury were obviously likely is not the Court of Appeal's evidential finding.

# Age, Context and Inexperience

## 1. Age is not a mechanical sliding scale

An older child may be expected to exercise more foresight than a younger child. In some situations, a teenager's expected care may resemble that of an adult. But there is no fixed rule that 17 automatically equals 18 or that the childhood adjustment disappears at 16 or 17.

Ask what a reasonable child of the relevant age would appreciate in this situation. Do not invent percentage reductions for each year below adulthood. The court in Mullin endorsed an approach that does not arbitrarily select one age for adult foresight in every context.

## 2. Invented variations: changed evidence

**Variation A:** before a similar game, the pupils are clearly warned that the rulers can splinter and injure eyes. An age-appropriate assessment must take that warning into account.
**Variation B:** a pupil uses a visibly cracked ruler and aims hard blows at a classmate's face. That differs from the facts accepted in Mullin and may support breach.

Neither variation automatically proves liability. The court must examine the actual evidence, the applicable duty and standard, causation and damage. A common activity is not necessarily a safe or legally acceptable activity.

## 3. Contrast: mere inexperience is different

**Nettleship v Weston [1971] 2 QB 691**, mentioned in the transcript, concerned a learner driver who injured the friend instructing her. The majority applied the standard of a reasonably competent and experienced driver: being a beginner did not lower it.

**The instructor succeeded on appeal**, but the majority reduced his damages by 50% for contributory negligence. Knowing that she was a learner did not by itself remove his claim. Do not treat the childhood adjustment as a general excuse for inexperience in every activity.

> Three distinct ideas: age can shape the appropriate benchmark; mere inexperience does not always lower it; the evidence and circumstances determine whether the benchmark was met.

The ruler variations are invented. Nettleship is included as a brief contrast, not a complete account of all standards for minors undertaking specialised activities.

# Check Your Understanding

**1. Does “objective” mean the facts are irrelevant?**
Answer: No. It means applying a legal benchmark rather than making the defendant’s personal belief decisive. The circumstances still matter.

**2. What is the ordinary comparison for a 13-year-old defendant?**
Answer: A reasonable child of 13 in the relevant circumstances, rather than simply a reasonable adult.

**3. Does the child’s statement “I did not see the danger” end the inquiry?**
Answer: No. Ask what a reasonable child of that age should have appreciated, not only what this child actually thought.

**4. Who won in Mullin v Richards?**
Answer: Heidi Richards won on appeal. The evidence did not justify finding that the relevant reasonable 15-year-old should have foreseen a significant risk of injury from the game.

**5. Is a 17-year-old automatically judged as an adult?**
Answer: No. Expected care may be similar for some risks, but there is no automatic age-equivalence rule replacing the age-appropriate analysis.

**6. What if there had been a clear warning about eye injuries?**
Answer: That changes the evidence relevant to foreseeable danger. Consider what a reasonable child of that age would understand and do in response.

**7. Why is Nettleship a useful contrast?**
Answer: A learner driver’s inexperience did not reduce the driving standard. An adjustment for childhood is not a general licence to lower standards whenever someone is inexperienced.

> Exam sequence: identify defendant, age and activity → establish the relevant duty → select the appropriate benchmark → assess foreseeable risk using the evidence before the event → explain breach or no breach → examine the remaining requirements.

## Sources

Based on the supplied Law Academy transcript, correcting the treatment of objectivity, age and the outcome in Mullin. Primary judgments: Mullin v Richards [1998] 1 WLR 1304; [1997] EWCA Civ 2662; Nettleship v Weston [1971] 2 QB 691. The ruling on the school authority is distinct from Heidi’s appeal. Invented variations are marked.